

Chotu Service And Washing Center v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 November 2016 · Writ-C No. 56687 of 2016 · **Writ disposed; petitioner relegated to Section 127 appeal**

HEADNOTE

After the Executive Engineer passed a final assessment during the writ, the Division Bench declined interference, holding that an appeal under Section 127 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005 was the statutory alternative remedy, and disposed of the petition.

FACTUAL SUMMARY

Chotu Service And Washing Center filed a writ petition in the Allahabad High Court against the State of U.P. and two others. When the matter was called, counsel for the respondents informed the Court that the Executive Engineer had already passed a final assessment order dated 21 November 2016. A copy of that order was produced before the Court and handed over to the petitioner's counsel.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

final assessment — relegation to statutory appeal

HOLDING

Once a final assessment has been passed, the consumer's remedy is the statutory appeal under Section 127 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005; the High Court will not interfere in writ. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal The Executive Engineer's final assessment dated 21.11.2016 was treated as attracting the Section 127 appeal, and the writ was disposed without examining the assessment. ¶ 1

alternate-remedy-section-127-appeal-bars-writ Existence of the Section 127 appeal, read with the Supply Code 2005, was the sole ground for declining writ interference. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE EXECUTIVE ENGINEER'S FINAL ASSESSMENT DATED 21.11.2016

Writ disposed solely on the availability of a Section 127 appeal; merits not examined. ¶ 1